

consents under
18 & 19 Vict.
128, s. 9.

1. The consent of the owner, lessee, and occupier of a dwelling-house to the use for burials of any ground used or appropriated for a burial ground or cemetery, mentioned in section nine of the Burial Act, 1855, shall not be, and shall be deemed never to have been, required in any case where the dwelling-house is or was begun to be erected, or is or was erected or completed, after any part of that ground has or has been so used or appropriated :

18 & 61 Vict.
15.

Provided that nothing in this section shall affect any right acquired before the twenty-seventh day of November one thousand nine hundred and six under any judgment or order of a court of competent jurisdiction or under any agreement in writing but if a dispute, one of the parties to which is a burial authority within the meaning of the Burial Act, 1900, arises under such an agreement as to any such right, the dispute shall, if either party so requires, be determined by the Local Government Board either as arbitrators or otherwise at the option of the Board, in like manner as if it were a difference which the Board are authorised to determine under the Local Government Act, 1888, and sections sixty-three and subsections (1) and (5) of section eighty-seven of that Act, as amended by any subsequent enactment, shall apply accordingly.

18 & 62 Vict.
41

consents under
19 & 21 Vict.
265,
18 & 43 Vict.
31.

2. In section ten of the Cemeteries Clauses Act, 1847, as incorporated with the Public Health (Interments) Act, 1879, "one hundred yards" shall be substituted for "two hundred yards" as the distance from a dwelling-house within which no part of a cemetery may be constructed without the consent of the owner, lessee, and occupier of the house.

not title

3. This Act may be cited as the Burial Act, 1906, and may be cited with the Burial Acts, 1852 to 1900, as the Burial Act, 1852 to 1906.

CHAPTER 45.

An Act to repeal the provisions of the Metropolitan Police Act, 1839, with respect to the removal of Offensive Matter in places within the Metropolitan Police District.
[21st December 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

of 2 A.D.
187, s. 100,
117, s. 100,
117, s. 100,
117, s. 100,

1. Paragraph (4) of section sixty of the Metropolitan Police Act, 1839 (which paragraph relates to the emptying of privies and the removal of offensive matter), is hereby repealed.

2. This Act may be cited as the Removal of Offensive Matter